

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

DOMINIQUE SINDAYIGANZA

Plaintiff,

**COMPLAINT
AND DEMAND FOR
JURY TRIAL**

-versus-

THE CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT POLICE OFFICER JOHN
DOE (WHITE); POLICE OFFICER SEAN GILLESPIE;
POLICE JOHN DOE 1 THROUGH 5 (the name John
Doe, being fictitious, as the true names are presently
unknown),

10-CV-8483 (RJH)
ECF CASE

Defendants.

Plaintiff DOMINIQUE SINDAYIGANZA, by his attorney, LURIE DANIEL FAVORS, as and
for his complaints, does hereby state and allege:

STATEMENT OF THE CASE

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, as amended, codified as 42 U.S.C. § 1983.
2. PLAINTIFF, DOMINIQUE SINDAYIGANZA'S, rights were violated when Officers of the New York City Police Department unconstitutionally and without any legal basis seized, detained, arrested, and used unlawful force against the Plaintiff. By reason of defendants' actions, including their unreasonable and unlawful conduct, unreasonable search and malicious prosecution, Plaintiff was deprived of his constitutional rights.

3. Plaintiff seeks redress from the Defendants, THE CITY OF NEW YORK; NEW YORK CITY POLICE DEPARTMENT POLICE OFFICER JOHN DOE WHITE; POLICE OFFICER GILLESPIE and POLICE OFFICERS JOHN DOE 1 through 5; for violation of his rights as guaranteed by the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §§ 1983 and 1998.

4. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION

5. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

6. This Court has original jurisdiction over plaintiff's causes of action brought pursuant to 28 U.S.C. §§ 1331 and 1343 (3) and (4), since they seek redress for the violation of plaintiff's federal constitutional and civil rights.

7. An award of attorneys' fees is authorized pursuant to 42 U.S.C. §1988.

VENUE

8. Venue is properly laid in the Southern District of New York under U.S.C. § 1391(b), because it is within this District the claim arose.

JURY DEMAND

9. Plaintiff respectfully demands a trial by jury in this action on each and every one of his damage claims.

PARTIES

10. At all times pertinent to this complaint, Plaintiff DOMINIQUE SINDAYIGANZA was a resident of the County of Queens.

11. Defendant THE CITY OF NEW YORK is and was at all times relevant to this action a municipal corporation authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by NYPD.

12. Defendants NEW YORK CITY POLICE DEPARTMENT ("NYPD") POLICE OFFICER JOHN DOE WHITE, POLICE OFFICER SEAN GILLESPIE and POLICE OFFICERS JOHN DOE 1 through 5 (referred to collectively as Defendant OFFICERS) are and were at all times relevant to this action police officers employed by Defendant CITY OF NEW YORK. The individual defendants are being sued herein in their individual and official capacities.

13. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

14. Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice and gross disregard for Plaintiffs' rights.

15. At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

16. Plaintiff SINDAYIGANZA resides at 90-72 179th St. 2nd Floor, Jamaica, NY 11432, in Queens County, in the City and State of New York.

17. On February 12, 2010, at approximately 6:15 pm, Plaintiff SINDAYIGANZA was walking in the vicinity of Broadway and East 17th St. in the City, County and State of New York.

18. Plaintiff SINDAYIGANZA was exiting a Petco store when he was approached by the Defendant OFFICERS.

19. The Defendant OFFICERS instructed Plaintiff SINDAYIGANZA to follow them and Plaintiff SINDAYIGANZA complied.

20. The Defendant OFFICERS began asking Plaintiff SINDAYIGANZA why he had been “following that woman” and why was he “asking her for money”. Plaintiff SINDAYIGANZA informed the Defendant OFFICERS that he did not know the woman they referenced, as he had not followed anyone nor had he asked anyone for money.

21. The Defendant OFFICERS began aggressively questioning Plaintiff SINDAYIGANZA about his family, his job and repeatedly asked him why he had followed a woman in the store and asked her for money. Plaintiff SINDAYIGANZA answered the questions and reiterated that he had neither followed any woman nor had he asked anyone for money.

22. The Defendant OFFICER GILLESPIE informed Plaintiff SINDAYIGANZA that he had been identified by the store-owner and the unnamed woman. Plaintiff SINDAYIGANZA again indicated that he had neither followed a woman nor requested that anyone give him money.

23. After hearing Plaintiff's responses, Defendant OFFICER JOHN DOE #1 yelled at Plaintiff SINDAYIGANZA, telling him to "shut up asshole! You talk too much!"

24. Thereafter, Defendant OFFICER JOHN DOE WHITE informed Plaintiff SINDAYIGANZA that he is free to leave but instructs him to walk away from Union Square and to head north on Broadway. Plaintiff SINDAYIGANZA informed the officer that his train is just across the street and asked if he could simply go to his train stop instead.

25. Defendant OFFICER JOHN DOE WHITE repeated his admonition that Plaintiff SINDAYIGANZA only head north on Broadway. Defendant OFFICER JOHN DOE WHITE then tells the other Defendant OFFICERS that Plaintiff SINDAYIGANZA is a "wise guy" and then instructed Plaintiff SINDAYIGANZA to put his hands up against the wall, whereupon Plaintiff SINDAYIGANZA was handcuffed and forced to sit down on the ground.

26. The temperatures were extremely cold at that time of year as New York had recently experienced a powerful snowstorm. For that reason, Plaintiff SINDAYIGANZA asked if he could stand as the ground was very cold due to the frigid February night temperatures. Defendant OFFICER JOHN DOE WHITE laughed and responded "no, you dick." The remaining Defendant OFFICERS began making comments to the effect of "that will teach him a lesson."

27. The Defendant OFFICERS then began searching Plaintiff SINDAYIGANZA and his belongings. In the course of this search they left his jacket open and refused to respond to his request that he be allowed to zip up his jacket. When Plaintiff SINDAYIGANZA pointed out that he was extremely cold due to the low temperatures the Defendant OFFICER JOHN DOE #2 asked him if he wanted "a back rub too".

28. When the Defendant OFFICERS finished their search Plaintiff SINDAYIGANZA was placed in a patrol car and informed that the OFFICERS were taking him to the precinct. Plaintiff